

Court No. - 1

Case :- WRIT - C No. - 4529 of 2020

Petitioner :- Chaudhary Ram Prakash Private Iti

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ankit Kumar Rai,Santosh Kumar Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

Heard Sri Ankit Kumar Rai, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondent Nos. 2 & 3, learned Standing Counsel for the respondent Nos. 1, 4 & 5 and perused the record.

By means of this writ petition under Article 226 of the Constitution, the petitioner has questioned the recovery certificate issued on 28th May, 2019 at the instance of Electricity Department for a sum of Rs.14,25,000/-.

Questioning the recovery certificate it has been argued by the learned counsel for the petitioner that the respondents have never issued a corrected bill.

Sri Baleshwar Chaturvedi, learned counsel for the respondent Nos. 2 & 3 submits that the petitioner has been deliberately delaying the deposit against the bills and has never paid entire bill at a point of time whenever demand is raised.

Be that as it may, considering the facts and circumstances of the case, we open it for the petitioner to file objection for correction of the bills before the concerned respondent under Section 6.5 of U.P. Electricity Supply Code, 2005 within two weeks from today and the same shall be considered and decided taken within as period of six weeks thereafter.

We further clarified that if petitioner deposits 50% of the amount under the recovery certificate within two weeks from today, the electricity supply shall be restored, failing which respondent authority shall proceed strictly in accordance with law.

With the aforesaid observations/ directions, the writ petition stands disposed of.

Order Date :- 7.2.2020

Atmesh

(Ajit Kumar,J.) (Ramesh Sinha,J.)